

Mohd. Yameen v. U.P. Power Corporation / Paschimanchal Electricity Distribution Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 16 July 2018 · WRIT - C No. - 23840 of 2018 · **Writ disposed; EE to consider 6.14 installment claim within a month.**

HEADNOTE

A consumer who accepts electricity dues and seeks easy installments, with the licensee raising no objection under Supply Code paragraph 6.14, is directed to apply to the Executive Engineer. The EE is to consider and decide the installment claim under paragraph 6.14, as far as possible within one month. The Court did not itself grant or refuse installments.

FACTUAL SUMMARY

Mohd. Yameen filed a writ in the Allahabad High Court against electricity dues claimed by Paschimanchal Electricity Distribution Corporation Ltd. He accepted the liability and asked to pay in easy installments. Counsel for the distribution company said the corporation had no objection, because paragraph 6.14 of the U.P. Electricity Supply Code, 2005 contemplates payment of such dues in installments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment payment of admitted dues

HOLDING

Where the consumer accepts the electricity dues and seeks easy installments, and the licensee has no objection because paragraph 6.14 of the U.P. Electricity Supply Code, 2005 contemplates installment payment, the writ is disposed of by directing the consumer to approach the Executive Engineer, who shall consider and decide the installment claim under paragraph 6.14, as far as possible within one month. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALLMENTS SHOULD BE GRANTED, AND ON WHAT TERMS

Left to the Executive Engineer to consider and decide under paragraph 6.14. ¶ 1